

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
STEVEN RIVERA,

Plaintiff,

-against-

THE CITY OF NEW YORK,
POLICE OFFICER LAUREN SHEPHERD [SHIELD
NO. 6524],
POLICE OFFICER SHAWN NIGRO [SHIELD NO. 20998],
SERGEANT MIGUEL FIGUEROA [SHIELD NO. 3780],
AND JOHN AND JANE DOES 1-10,

Defendants.
-----X

SUMMONS

Plaintiff designates KINGS
County as the place of trial.

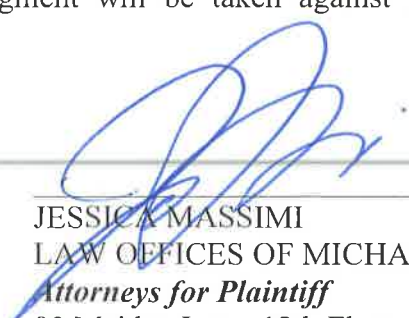
The basis of venue is:
Plaintiff's Place of
Residence

Plaintiff resides at:
91 Verona St. Apt. 3R
Brooklyn, NY 11231

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 23, 2013



JESSICA MASSIMI
LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC
Attorneys for Plaintiff
80 Maiden Lane, 12th Floor
New York, New York 10038
(212) 962-1020

TO: THE CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER LAUREN SHEPHERD [SHIELD NO. 6524]
Police Service Area 1
2860 west 23rd Street
Coney Island, Brooklyn, New York 11224

POLICE OFFICER SHAWN NIGRO [SHIELD NO. 20998]
Police Service Area 1
2860 west 23rd Street
Coney Island, Brooklyn, New York 11224

SERGEANT MIGUEL FIGUEROA [SHIELD NO. 20998]
Police Service Area 1
2860 west 23rd Street
Coney Island, Brooklyn, New York 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
STEVEN RIVERA,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
POLICE OFFICER LAUREN SHEPHERD [SHIELD NO.
6524],
POLICE OFFICER SHAWN NIGRO [SHIELD NO. 20998],
SERGEANT MIGUEL FIGUEROA [SHIELD NO. 3780],
AND JOHN AND JANE DOES 1-10,

Defendants,
-----X

Plaintiff, STEVEN RIVERA, by and through his attorneys, **THE LAW OFFICES OF
MICHAEL S. LAMONSOFF, PLLC**, complaining of the defendants herein, respectfully
shows the Court and alleges:

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiff, STEVEN RIVERA, seeks relief for the defendants' violation of his rights secured by the Civil Rights Act of 1871, 42 U.S.C. §§ 1983 and 1988, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, and of rights secured under the laws and Constitution of the State of New York. The plaintiff seeks damages, both compensatory and punitive, affirmative and equitable

relief, an award of costs, interest and attorney's fees, and such other and further relief as this Court deems equitable and just.

JURISDICTION

2. Jurisdiction of this Court is invoked pursuant to 28 U.S.C. §§ 1331, 1343, 1367 and 42, this being an action seeking redress for the violation of plaintiff's constitutional and civil rights

3. Jurisdiction is also invoked herein pursuant to the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983.

4. The plaintiff respectfully requests that this Court exercise jurisdiction over all state and federally-based causes of action that arise from a common nucleus of operative facts pleaded herein, and as against all parties that are so related to claims in this action within the original jurisdiction of this court that are formed as part of the same case or controversy.

VENUE

5. Venue herein is properly laid in the Supreme Court of the State of New York, County of Bronx.

NOTICE OF CLAIM

6. Plaintiff filed a Notice of Claim with the Comptroller of the City of New York within 90 days of the events complained of herein. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.

7. That Plaintiff, pursuant to General Municipal Law 50(h) will appear for a statutory

Hearing once his charges are dismissed.

8. This action is commenced within one year and ninety days from the date the pendent claim herein accrued.

JURY TRIAL DEMAND

9. Plaintiff hereby demands a trial by jury of all issues in this action that are triable.

PARTIES

10. Plaintiff, STEVEN RIVERA, is an adult male and at all times hereinafter mentioned was and still is a citizen of the United States residing in the State of New York and the County of Kings.

11. Defendant THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

12. Defendant THE CITY OF NEW YORK is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by the New York City Police Department.

13. Defendants POLICE OFFICER LAUREN SHEPHERD [SHIELD NO. 6524],

POLICE OFFICER SHAWN NIGRO [SHIELD NO. 20998], SERGEANT MIGUEL FIGUEROA [SHIELD NO. 20998], AND JOHN AND JANE DOES 1-10, are and were at all times relevant herein, a duly appointed and acting officers, servants, employees and agents of the New York City Police Department, a municipal agency of THE CITY OF NEW YORK, assigned to a local area Police Service Area 1. The defendants were at all times relevant herein, acting under color of state law in the course and scope of their duties and functions as officers, agents, servants, and employees of defendant THE CITY OF NEW YORK. The defendants were acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK and the New York City Police Department, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties. The defendants are sued herein in their official and individual capacities.

STATEMENT OF FACTS

14. Plaintiff hereby restates, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same power and force as if fully stated at length below.

15. On June 3, 2012, at approximately 1:15 am, in the County of Kings, City and State of New York, plaintiff, STEVEN RIVERA, was lawfully walking on or around Richards Street from a family gathering with his family when the defendants, Police Officer Lauren Shepherd, Police Officer Shawn Nigro, and Sergeant Miguel Figueroa arrived in unmarked vehicles.

16. Defendants John and Jane Does 1-10 arrived on the scene shortly thereafter.

17. Although there was no legal basis or justification for doing so and without warning, the defendants proceeded to tackle plaintiff to the ground and handcuff him.

18. Defendants then began punching plaintiff in the back of the head repeatedly.

19. Plaintiff was not engaged in any illegal activity.

20. Plaintiff complied with defendants' requests.

21. At no time did plaintiff resist arrest.

22. Despite the absence of any evidence of wrongdoing on the part of the plaintiff, defendants searched plaintiff.

23. The search yielded no evidence of any guns, drugs, or contraband.

24. Despite absence of any evidence of wrongdoing on the part of plaintiff, the defendants formally arrested him.

25. Steven Rivera was then escorted to and sat down in one of the unmarked vehicles and the defendants proceeded to slam the vehicle's door on the plaintiff's legs. to seize the plaintiff, the defendants placed the plaintiff in handcuffs and searched him.

26. Plaintiff complied with defendants' requests.

27. Without any legal basis or justification for doing so, the defendants then subjected plaintiff to excessive force in part of by the following: committing an unjustified arrest of plaintiff; carelessly employing the use of force in arresting plaintiff; committing a harmful, offensive and un-consented restraint of plaintiff's person; acting outside the scope and authority of prescribed powers and duties; unlawfully interfering with plaintiff's right to conduct his usual business; and otherwise using great and threatening force and violence against plaintiff.

28. The decision to arrest plaintiff was objectively unreasonable under the

circumstances.

29. Plaintiff was not engaged in any illegal activity.

30. That the acts and conduct constituting the false arrest and false imprisonment consisted in part of the following; unlawfully and intentionally detaining and confining plaintiff against his will and without his consent; unlawfully and intentionally detaining and confining plaintiff without privilege, probable cause or valid legal process; unlawfully detaining and confining plaintiff through the unlawful arrest of plaintiff; unlawfully detaining and confining plaintiff through the use of force; unlawfully arresting plaintiff and placing plaintiff in handcuffs without reasonable cause therefore, and committing such other acts resulting in the unlawful arrest and imprisonment of plaintiff.

31. Plaintiff was then taken to a local area precinct believed to be PSA 1, where he was held overnight.

32. Plaintiff was then taken to Kings County Central Booking the next morning where he was held overnight.

33. Plaintiff was then arraigned on a criminal complaint sworn to or made on the basis of false allegations supplied by the individual defendants.

34. The factual allegations sworn to and/or incorporated by the defendants against the plaintiff were materially false and deliberately made to justify the illegal arrest and assault by the defendants against the plaintiff.

35. As a result of the false information provided and/or incorporated by the defendants, plaintiff was caused to be prosecuted and make several court appearances on these charges, and is still being prosecuted pursuant to these false allegations.

36. The factual allegations sworn to by the defendants against plaintiff were materially false and deliberately made to justify the illegal search, arrest, and excessive force perpetrated by the defendants against plaintiff.

37. It was objectively unreasonable for the defendants to arrest plaintiff, as there was no evidence that he had engaged in any unlawful conduct.

38. At no time did there exist sufficient cause to seize or arrest plaintiff, nor could the defendants have reasonably believed that such cause existed.

39. At no time did there exist any basis to utilize any level of force against the plaintiff, much less the force actually employed, nor could any of the defendants have reasonably believed that such force was necessary.

40. At no time did any of the individual defendants take any steps to intervene in, prevent, or otherwise limit the aforementioned conduct engaged in against the plaintiff.

41. The individual defendants intentionally and deliberately gave false statements and/or failed to file accurate or corrective statements, or otherwise failed to report the conduct of the defendants who engaged in the misconduct engaged herein as required.

42. That at all relevant time mentioned herein, the defendants were on duty and acting within the scope of their employment, and under color of law and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

43. Plaintiff, STEVEN RIVERA, repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

44. The defendants willfully and intentionally seized, searched, detained, and arrested

plaintiff without probable cause, and without a reasonable basis to believe such cause existed.

45. The defendants willfully and intentionally subjected plaintiff to physical force in excess of what was reasonable under the circumstances and caused plaintiff to suffer physical injuries, and did so without a reasonable basis to believe that such conduct was appropriate, reasonable, lawful, or necessary.

46. By doing so, the individual defendants, individually and collectively, subjected plaintiff to false arrest and imprisonment, malicious prosecution, excessive force, unlawful searches of person and property, and denial of due process, and thereby violated, conspired to violate, and aided and abetted in the violation of plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.

47. As a result of the foregoing, the individual defendants have violated 42 U.S.C. § 1983, and caused plaintiff to suffer a deprivation of liberty, loss of his constitutional rights, loss of quality and/or enjoyment of life, economic injury, physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

SECOND CAUSE OF ACTION

48. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

49. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within and/or over the NYPD.

50. At all times material to this complaint, defendant THE CITY OF NEW YORK, acting through its police department, and through individual defendants, had in effect actual

and/or *de facto* policies, practices, customs and usages that were a direct and proximate cause of the unconstitutional conduct alleged of the individual defendants.

51. At all times material to this complaint, defendant THE CITY OF NEW YORK failed to properly train, screen, supervise or discipline its employees and police officers, including the individual defendants named herein, concerning the correct practices in having probable cause and/or reasonable suspicion to detain a person, and then permit detention, inflict abuse and excessive force upon said person, batter and assault and sustain a false arrest, thereby permitting the individual defendants to be in a position to violate plaintiff's rights.

52. Defendant THE CITY OF NEW YORK, being aware that such lack of training, supervision, and discipline leads to improper conduct by its employee police officers, acted with deliberate indifference in failing to establish a program of effective training, supervision and discipline. Defendant THE CITY OF NEW YORK is aware of the persistent and substantial risk of improper and incorrect arrest and detention, and effective training, supervision, and discipline would lessen the likelihood of such occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens and which are officially tolerated by defendant THE CITY OF NEW YORK. Such policies, practices, customs or usages were the direct and proximate cause of the harm to the plaintiff, in violation of plaintiff's rights as guaranteed by 42 U.S.C. § 1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

53. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within and/or over the NYPD.

54. Defendant had actual or constructive knowledge that there was inadequate

supervision over and/or within the NYPD with respect to its members' abuse of their authority, use of excessive force, abuse of arrest powers, and other blatant violations of the United States Constitution and rules and regulations of the NYPD. Despite ample notice of inadequate supervision, defendants took no steps to ensure that reasonable and appropriate levels of supervision were put in place to reasonably ensure that NYPD members engaged in police conduct in a lawful and proper manner, including their use of their authority as law enforcement officers with respect to the general public, including, and specifically, the plaintiff herein.

55. The defendant City of New York deliberately and intentionally chose not to take action to correct the chronic, systemic, and institutional misuse and abuse of police authority by its NYPD employees, and thereby deliberately and intentionally adopted, condoned, and otherwise created through deliberate inaction and negligent supervision, an NYPD policy, practice, and custom of utilizing illegal and impermissible searches, arrests, detentions, malicious prosecution, and the manufacturing of evidence, in the ordinary course of NYPD business in flagrant disregard of the state and federal constitutions, as well as the Patrol Guide, up to and beyond the plaintiff's arrest.

56. All of the acts or omissions by the individual defendants described above were carried out pursuant to overlapping policies and practices of the municipal defendant in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD.

57. The aforementioned customs, practices, procedures, and rules of the City and the NYPD include, but are not limited to, the following unconstitutional practices:

- a. Using excessive force on individuals, including but not limited to those who have already been handcuffed;
- b. Failing to supervise, train, instruct and discipline police officers and encouraging their misconduct;
- c. Discouraging police officers from reporting the corrupt or unlawful acts of others;
- d. Retaliating against officers who report police misconduct; and
- e. Failing to intervene to prevent the above-mentioned practices when such intervention is reasonably available.

58. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following, non-exhaustive list of civil actions:

- a. *Thompson v. City of New York*, 10-CV-3603 (ARR) (SMG) (E.D.N.Y.);
- b. *Lotorto v. City of New York*, 10-CV-1223 (ILG) (JMA) (E.D.N.Y.);
- c. *Zabala v. City of New York*, 37711/2010 (Sup. Ct. Kings Co.);
- d. *Ashe v. City of New York*, 09-CV-9216 (AKH) (S.D.N.Y.);
- e. *Long v. City of New York*, 09-CV-9216 (AKH) (S.D.N.Y.);
- f. *Moise v. City of New York*, 09-CV-9855 (DC) (JLC) (S.D.N.Y.);
- g. *Taylor-Mickens v. City of New York*, 09-CV-7923 (RWS) (S.D.N.Y.);
- h. *Carmody v. City of New York*, 05-CV-8084 (HB), 2006 U.S. Dist. LEXIS 83207;
- i. *McMillan v. City of New York*, 04-CV-3990 (FB) (RML) (E.D.N.Y.);
- j. *Avent v. City of New York*, 04-CV-2451 (CBA) (CLP) (E.D.N.Y.);
- k. *Smith v. City of New York*, 04-CV-1045 (RRM) (JMA) (E.D.N.Y.);
- l. *Powers v. City of New York*, 04-CV-2246 (NGG) (E.D.N.Y.);

- m. *Dotson v. City of New York*, 03-CV-2136 (RMB) (S.D.N.Y.);
- n. *Nonnemann v. City of New York*, 02-CV-0131 (JSR) (AJP) (S.D.N.Y.);
- o. *Richardson v. City of New York*, 02-CV-3651 (JG) (CLP) (E.D.N.Y.);
- p. *Barry v. New York City Police Department*, 01-CV-10627 (CBM) (S.D.N.Y.);
- q. *Walton v. Safir*, 99-CV4430 (AKH) (S.D.N.Y.);
- r. *White-Ruiz v. The City of New York*, 93-CV-7233 (DLC) (MHD) (S.D.N.Y.);
- s. *Ariza v. City of New York*, 93-CV-5287 (CPS) (E.D.N.Y.).

59. In an Order dated November 25, 2009, in *Colon v. City of New York*, 09-CV-0008 (E.D.N.Y.), the Hon. Jack B. Weinstein stated:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officer of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration – through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department – there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city of the illegal conduct of the kind now charged.

60. It is therefore, axiomatic that the municipal defendant has not only tolerated, but actively fostered a lawless atmosphere within the NYPD and that the City of New York was deliberately indifferent to the risk the inadequate level of supervision would lead to the violation of individuals' constitutional rights in general, and caused the violation of plaintiff's rights in particular.

61. As a direct result of defendant's actions, plaintiff suffered a denial of his federal

statutory rights, constitutional rights and privileges. Such deprivations were in violation of the rights secured to plaintiff, STEVEN RIVERA by the Fourth and Fourteenth Amendments of the United States Constitution and by Title 42 U.S.C.A § 1983.

62. As a result of the foregoing, plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

THIRD CAUSE OF ACTION

63. Plaintiff, STEVEN RIVERA, repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

64. That on the aforementioned date, time and place, the defendants committed the tort of assault and battery against the plaintiff by causing him to be in apprehension of imminent, harmful and offensive touching and in so doing, defendants violated the laws and Constitution of the State of New York and otherwise violated plaintiff's rights under New York Law

65. Defendant THE CITY OF NEW YORK is vicariously liable to the plaintiff for the individual defendants' "POLICE OFFICERS" common tort of battery via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).

66. That by reason of the assault and battery, the plaintiff was harmed physically while unlawfully detained, and that the plaintiff was otherwise harmed as a result of the defendants' actions.

67. As a result of the foregoing, plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress,

great humiliation, costs and expenses, and was otherwise damaged and injured.

FOURTH CAUSE OF ACTION

68. Plaintiff, STEVEN RIVERA, repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

69. The defendants willfully and intentionally subjected plaintiff to prosecution and commenced criminal process against him without probable cause for his prosecution, and did so without a reasonable basis to believe that such conduct was appropriate, reasonable, lawful, or necessary.

70. By doing so, the individual defendants, individually and collectively, subjected plaintiff to malicious prosecution and denial of due process, and thereby violated, conspired to violate, and aided and abetted in the violation of plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.

71. As a result of the foregoing, the individual defendants have caused plaintiff to suffer a deprivation of liberty, loss of his constitutional rights, loss of quality and/or enjoyment of life, economic injury, physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

FIFTH CAUSE OF ACTION

72. Plaintiff, STEVEN RIVERA, repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

73. Defendants negligently caused injuries, emotional distress and damage to the plaintiff, STEVEN RIVERA. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated his statutory and common law rights as

guaranteed by the laws and Constitution of the State of New York.

74. As a result of the foregoing, plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

SIXTH CAUSE OF ACTION

75. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

76. Defendant THE CITY OF NEW YORK negligently hired, screened, retained, supervised and trained defendants "POLICE OFFICERS." The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

77. As a result of the foregoing, plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

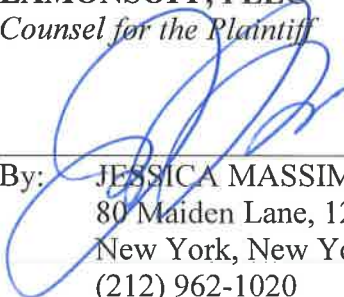
78. That by reason of the aforesaid, the plaintiff has been damaged in a sum not to exceed ONE MILLION (1,000,000.00) DOLLARS and that an award of attorney's fees is appropriate pursuant to 42 USC § 1988.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empanelling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorneys' fees;
- e. Such other further relief as this court may deem appropriate and equitable.

Dated: New York, New York
May 23, 2013

Respectfully submitted,
**LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC**
Counsel for the Plaintiff



By: JESSICA MASSIMI, Esq. (JM-2920)
80 Maiden Lane, 12th Floor
New York, New York 10038
(212) 962-1020

VERIFICATION

JESSICA MASSIMI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF MICHAEL S. LAMONSOFF, attorneys of record for Plaintiff, **STEVEN RIVERA**, in the action within. I have read the annexed

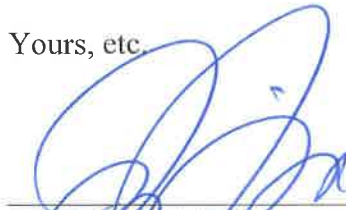
SUMMONS and VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorneys for the Plaintiff maintain their offices.

Dated: New York, New York
May 23, 2013

Yours, etc.



JESSICA MASSIMI
LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC
Attorneys for Plaintiff
80 Maiden Lane, 12th Floor
New York, New York 10038
(212) 962-1020